

Unofficial 20. Document

When Recorded Mail to:

John Craiger

POLSINELLI PC

One E. Washington St., Ste. 1200

Phoenix, AZ 85004

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Cr:

SPACE ABOVE THIS LINE FOR RECORDERS USE

NOTICE OF TRUSTEE'S SALE

The following legally described trust property will be sold, pursuant to the power of Sale under that certain Leasehold Deed of Trust, Security Agreement and Fixture Filing dated **April 29, 2015** and recorded on **May 1, 2015** as Document No. **20150307912**, recorded in the office of the County Recorder of **Maricopa** County, Arizona (collectively and as assigned, the "Deed of Trust"), **NOTICE! IF YOU BELIEVE THERE IS A DEFENSE TO THE TRUSTEE SALE OR IF YOU HAVE AN OBJECTION TO THE TRUSTEE SALE, YOU MUST FILE AN ACTION AND OBTAIN A COURT ORDER PURSUANT TO RULE 65, ARIZONA RULES OF CIVIL PROCEDURE, STOPPING THE SALE NO LATER THAN 5:00 P.M. MOUNTAIN STANDARD TIME OF THE LAST BUSINESS DAY BEFORE THE SCHEDULED DATE OF THE SALE, OR YOU MAY HAVE WAIVED ANY DEFENSES OR OBJECTIONS TO THE SALE. UNLESS YOU OBTAIN AN ORDER, THE SALE WILL BE FINAL AND WILL OCCUR** at public auction to the highest bidder at the main entrance of the Superior Court Building, Maricopa County, 201 West Jefferson, Phoenix, AZ 85003, on **December 2, 2026** at **11:30 AM** of said day:

See Attached Exhibit "A" Legal Description

See Attached Exhibit "B" Personal Property

ACCORDING TO THE DEED OF TRUST OR UPON INFORMATION SUPPLIED BY THE BENEFICIARY, THE FOLLOWING INFORMATION IS PROVIDED PURSUANT TO A.R.S. SECTION 33-808(C):

Street address or identifiable location: **8075 South River Parkway, Tempe, AZ 85284**

A.P.N.: **301-53-309**

Original Principal Balance: **\$17,220,000.00**

Name and address of original trustor:
(as shown on the Deed of Trust)

TEMPE BUILDING LLC, a Delaware limited liability company
c/o H25A, LLC,
333 S. Grand Ave. Floor 28
Los Angeles, CA 90071

With a copy to:

**Vcorp Agent Services Inc.
25 Robert Pitt Drive, Suite 204
Monsey, NY 10952**

Name and address of beneficiary:
(as of recording of Notice of Sale)

**RSS COMM2015-PC1 - AZ TB, LLC
c/o Rialto Capital Advisors, LLC
200 S. Biscayne Boulevard
Suite 3550
Miami, Florida 33131**

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NOTICE OF TRUSTEE'S SALE

The successor trustee appointed herein qualifies as trustee of the Deed of Trust in the trustee's capacity as a member of the Arizona State Bar as required by ARS Section 33-803, Subsection A(2). Name of Trustee's Regulator: Arizona State Bar Association

NAME, ADDRESS & TELEPHONE NUMBER OF TRUSTEE:

(as of recording of Notice of Sale)

John Craiger

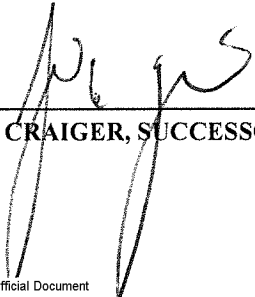
POLSINELLI PC

One E. Washington St., Ste. 1200

Phoenix, AZ 85004

(602) 650-2000

Dated this 18th day of August, 2026



JOHN CRAIGER, SUCCESSOR TRUSTEE

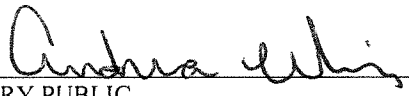
State of Arizona)

County of Maricopa) ss

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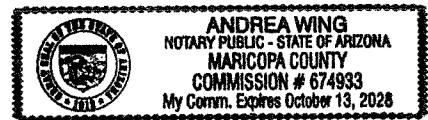
On this 18th day of August, 2026 before me, Notary Public, personally appeared **John Craiger** personally known to me (or proved to me on the basis of satisfactory evidence) to be the person whose name is subscribed to the within instrument and acknowledged to me that he executed the same in his authorized capacity, and that by his signature on the instrument the person, or the entity upon behalf of which the person acted, executed the instrument.

IN WITNESS WHEREOF I hereunto set my hand and official seal.



NOTARY PUBLIC

(seal)



My Commission Expires: 10/13/2028

EXHIBIT A**LEGAL DESCRIPTION**

Lot 5, ASU RESEARCH PARK AMENDED, according to the plat of record in the Office of the County Recorder of Maricopa County, Arizona, recorded in Book 1219 of Maps, Page 28 and thereafter, Affidavit of Correction recorded as 2015-0137239 of Official Records, recorded as 2015-0676631 of Official Records, recorded as 2015-0784364 of Official Records and recorded as 2016-0258322 of Official Records.

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EXHIBIT B

LESS AND EXCEPT ANY AND ALL PROPERTY PREVIOUSLY RELEASED OF RECORD

(a) **Ground Lease.** All of Borrower's estate, right, title and interest in, to and under that certain ASU Research Park Lease dated November 19, 1997 by and between Arizona State University Research Park, Inc., an Arizona non-profit corporation, f/Ida Price-Elliott Research Park, Inc. ("**Ground Lessor**") and Borrower, as successor by assignment to Piedmont Operating Partnership, L.P. ("**Piedmont**"), which is formerly known as Wells Operating Partnership, L.P., as successor by assignment to Ryan Companies US, Inc., a Minnesota corporation, as amended by that certain First Amendment to ASU Research Park Lease and Consent dated August 10, 2001, as further amended by that certain Second Amendment to Lease dated June 18, 2007, as further amended by that certain Third Amendment to ASU Research Park Lease and Consent dated as of the date hereof by and between Piedmont and Ground Lessor and as assigned pursuant to that certain Assignment and Assumption of ASU Research Park Lease dated as of the date hereof by and between Piedmont and Borrower (collectively, the "**Ground Lease**") and the leasehold estate in the land described in the Ground Lease and more particularly described on Exhibit A attached hereto (the "**Leasehold Property**") or air rights leased by the Borrower pursuant to the terms of the Ground Lease (the "**Leasehold Estate**"), as applicable, together with all buildings, structures, fixtures, additions, enlargements, extensions, modifications, repairs and replacements now or hereafter erected on the Leasehold Property and together with all appurtenances including, but not limited to (i) extension, renewal, modification, purchase and option rights and all of the estate and right of Borrower of, in, and to the Leasehold Property and Leasehold Estate under and by virtue of the Ground Lease, (ii) all credits to and deposits of Borrower under the Ground Lease and all other options, privileges and rights granted and demised to Borrower under the Ground Lease, (iii) all the right or privilege of Borrower to terminate, cancel, surrender or merge the Ground Lease and (iv) all rights to any subleases of the Ground Lease;

(b) **Additional Land.** All additional lands, estates and development rights hereafter acquired by Borrower for use in connection with the Leasehold Estate and the development of the Leasehold Estate or for any other use and all additional lands and estates therein ^{in this Unofficial Document} which may, from time to time, by supplemental mortgage or otherwise be expressly made subject to the lien of this Security Instrument regardless of the ownership thereof (the "**Additional Land**");

(c) **Improvements.** The buildings, structures, fixtures, additions, enlargements, extensions, modifications, repairs, replacements and improvements now or hereafter erected or located on the Leasehold Property or the Additional Land (collectively, the "**Improvements**");

(d) **Easements and Other Beneficial Interests.** All easements, rights-of-way or use, rights, strips and gores of land, streets, ways, alleys, passages, sewer rights, water, water courses, water rights and powers, air rights and development rights, and all estates, rights, titles, interests, privileges, liberties, servitudes, tenements, hereditaments and appurtenances of any nature whatsoever, in any way now or hereafter belonging, relating or pertaining to the Leasehold Estate, the Additional Land, and the Improvements and the reversion and reversions, remainder and remainders, and all land lying in the bed of any street, road or avenue, opened or proposed, in front of or adjoining the Leasehold Estate or the Additional Land, to the center line thereof and all the estates, rights, titles, interests, dower and rights of dower, curtesy and rights of curtesy, property, possession, claim and demand whatsoever, both at law and in equity, of Borrower of, in and to the Leasehold Estate or the Additional Land and the Improvements and every part and parcel thereof, with the appurtenances thereto;

(e) **Equipment.** All "equipment," as such term is defined in Article 9 of the Uniform Commercial Code (as hereinafter defined), now owned or hereafter acquired by Borrower, which is used at or in connection with the Improvements or the Leasehold Estate or the Additional Land or is located thereon or therein (including, but not limited to, all machinery, equipment, furnishings, and electronic data-processing and other office equipment now owned or hereafter acquired by Borrower and any and all additions, substitutions and replacements of any of the foregoing), together with all attachments, components, parts, equipment and accessories installed thereon or affixed thereto (collectively, the "**Equipment**"). Notwithstanding the foregoing, Equipment shall not include any property belonging to (i) tenants under leases or (ii) service providers to the property, in each case except to the extent that Borrower shall have any right or interest therein;

(f) **Fixtures.** All Equipment now owned, or the ownership of which is hereafter acquired, by Borrower which is so related to the Leasehold Estate or the Additional Land and Improvements forming part of the Property that it is deemed fixtures or real property under the law of the particular state in which the Equipment is located, including, without limitation, all building or construction materials intended for construction, reconstruction, alteration or repair of or installation on the Property, construction equipment, appliances, machinery, plant equipment, fittings, apparatuses, fixtures and other items now or hereafter attached to, installed in or used in connection with (temporarily or permanently) any of the Improvements or the Leasehold Estate or the Additional Land, including, but not limited to, engines, devices for the operation of pumps, pipes, plumbing, cleaning, call and sprinkler systems, fire extinguishing apparatuses and equipment, heating, ventilating, plumbing, laundry, incinerating, electrical, air conditioning and air cooling equipment and systems, gas and electric machinery, appurtenances and equipment, pollution control equipment, security systems, disposals, dishwashers, refrigerators and ranges, recreational equipment and facilities of all kinds, and water, gas, electrical, storm and sanitary sewer facilities, utility lines and equipment (whether owned individually or jointly with others, and, if owned jointly, to the extent of Borrower's interest therein) and all other utilities whether or not situated in easements, all water tanks, water supply, water power sites, fuel stations, fuel tanks, fuel supply, and all other structures, together with all accessions, appurtenances, additions, replacements, betterments and substitutions for any of the foregoing and the proceeds thereof (collectively, the "**Fixtures**"). Notwithstanding the foregoing, "**Fixtures**" shall not include any property which (i) Tenants are entitled to remove pursuant to Leases or (ii) service providers to the Property are entitled to remove pursuant to contracts for such services, in each case except to the extent that Borrower shall have any right or interest therein;

(g) **Personal Property.** All furniture, furnishings, objects of art, machinery, goods, tools, supplies, appliances, general intangibles, contract rights, accounts, accounts receivable, franchises, licenses, certificates and permits, and all other personal property of any kind or character whatsoever (as defined in and subject to the provisions of the Uniform Commercial Code as hereinafter defined), other than Fixtures, which are now or hereafter owned by Borrower and which are located within or about the Leasehold Estate, the Additional Land and the Improvements, together with all accessories, replacements and substitutions thereto or therefor and the proceeds thereof (collectively, the "**Personal Property**"), and the right, title and interest of Borrower in and to any of the Personal Property which may be subject to any security interests, as defined in the Uniform Commercial Code, as adopted and enacted by the state or states where any of the Property is located (the "**Uniform Commercial Code**"), superior in lien to the lien of this Security Instrument and all proceeds and products of the above;

(h) **Leases and Rents.** All leases and other agreements affecting the use, enjoyment or occupancy of the Leasehold Estate, the Additional Land and the Improvements heretofore or hereafter entered into (other than the Ground Lease), whether before or after the filing by or against Borrower of any petition for relief under 11 U.S.C. §101 et seq., as the same may be amended from time to time (the "**Bankruptcy Code**") (collectively, the "**Leases**") and all right, title and interest of Borrower, its successors and assigns therein and thereunder, including, without limitation, any lease guaranties, letters of credit, cash or securities deposited thereunder to secure the performance by the lessees of their obligations thereunder and all rents, additional rents, revenues, fees payable under the Leases (including, without limitation, any fees or other amounts payable in connection with termination or cancellation of any Lease with respect to all or a portion of the space demised thereunder), issues and profits (including all oil and gas or other mineral royalties and bonuses) from the Leasehold Estate, the Additional Land and the Improvements whether paid or accruing before or after the filing by or against Borrower of any petition for relief under the Bankruptcy Code (collectively, the "**Rents**") and all proceeds from the sale or other disposition of the Leases and the right to receive and apply the Rents to the payment of the Debt;

(i) **Condemnation Awards.** All awards or payments, including interest thereon, which may heretofore and hereafter be made with respect to the Property, whether from the exercise of the right of eminent domain (including but not limited to any transfer made in lieu of or in anticipation of the exercise of the right), or for a change of grade, or for any other injury to or decrease in the value of the Property;

(j) **Insurance Proceeds.** All proceeds of and any unearned premiums on any insurance policies covering the Property, including, without limitation, the right to receive and apply the proceeds of any insurance, judgments, or settlements made in lieu thereof, for damage to the Property;

(k) **Tax Certiorari.** All refunds, rebates or credits in connection with reduction in real estate taxes and assessments charged against the Property as a result of tax certiorari or any applications or proceedings for reduction;

(l) Rights. The right, in the name and on behalf of Borrower, to appear in and defend any action or proceeding brought with respect to the Property and to commence any action or proceeding to protect the interest of Lender in the Property;

(m) Agreements. All agreements, contracts, certificates, instruments, letters of credit, franchises, permits, licenses, plans, specifications and other documents, now or hereafter entered into, and all rights therein and thereto, respecting or pertaining to the use, occupation, construction, management or operation of the Leasehold Estate and any part thereof and any Improvements or respecting any business or activity conducted on the Leasehold Estate and any part thereof and all right, title and interest of Borrower therein and thereunder, including, without limitation, the right, upon the happening of any default hereunder, to receive and collect any sums payable to Borrower thereunder;

(n) Trademarks. All tradenames, trademarks, servicemarks, logos, copyrights, goodwill, books and records and all other general intangibles relating to or used in connection with the operation of the Property;

(o) Proceeds. All proceeds of any of the foregoing, including, without limitation, proceeds of insurance and condemnation awards, whether cash, liquidation or other claims or otherwise; and

(p) Other Rights. Any and all other rights of Borrower in and to the items set forth in Subsections (a) through (o) above.

AND without limiting any of the other provisions of the Security Instrument, to the extent permitted by applicable law, Debtor expressly grants to Trustee, for benefit of Secured Party, as secured party, a security interest in the portion of the Property which is or may be subject to the provisions of the Uniform Commercial Code which are applicable to secured transactions; it being understood and agreed that the Improvements and Fixtures are part and parcel of the Leasehold Estate (the Leasehold Estate, the Additional Land, the Improvements and the Fixtures collectively referred to as the "**Real Property**") appropriated to the use thereof and, whether affixed or annexed to the Real Property or not, shall for the purposes of the Security Instrument be deemed conclusively to be real estate and conveyed hereby.

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